the act of May 14, 1948 (Public Law 528, 80th Congress). However, such payment shall not prejudice the setting-off of overpayments, if any such be later discovered, against payments thereafter coming due under said act or their recoupment by other lawful means.

§ 12.3 *Certified copy to school district.* A certified copy of this regulation shall be furnished the Boulder City School District for its information and guidance.

MASTIN G. WHITE,
Acting Secretary of the Interior.

JULY 12, 1948.

[F. R. Doc. 48-6531; Filed, July 21, 1948; 8:48 a. m.]

Chapter I—Bureau of Land Management, Department of the Interior

[Order 318]

PART 50—ORGANIZATION AND PROCEDURE

DELEGATIONS TO CHIEFS OF DIVISIONS AND CHIEFS OF SUBDIVISIONS OF DIVISIONS

JULY 16, 1948.

Paragraph (a) of § 50.352 is amended by adding subparagraphs (25), (28), (29), (32) and (33) as follows:

§ 50.352 *Functions of the Chief, Division of Adjudication and the Chiefs of Subdivisions of that Division, with respect to various statutes.*[1] (a) * * *

(25) Approval of all bonds filed in connection with oil and gas leases, including collective bonds, where the officer has authority under any subparagraph of this paragraph to act on such leases.

(28) With respect to all mineral leases: Approval of assignments of leases or royalty interests, of operating agreements and assignments of such agreements, and of subleases, where the officer has authority under any subparagraph of this paragraph to act on such leases.

(29) Cancellation of liability on contracts (including leases and permits) and bonds after the contract has been fully performed, or terminated by agreement of the parties, and the determination incident to the cancellation of such liability, where the officer has authority under any subparagraph of this paragraph to act on such contracts, leases, or permits.

(32) Acceptance of surrender of part or entire leases and permits of all types administered by the Bureau of Land Management, where the officer has authority under any subparagraph of this paragraph to act on such leases and permits.

(33) Elimination from leases and permits of all type, of such lands which, having been previously disposed of, or having been subject to a withdrawal or reservation, were erroneously included.

(R. S. 161; 5 U. S. C. 22; Reorg. Plan No. 3 of 1946, 11 F. R. 7875)

MARION CLAWSON,
Director.

[F. R. Doc. 48-6538; Filed, July 21, 1948; 8:50 a. m.]

[1] The numbers of the subparagraphs in this section correspond with the numbers of the related subparagraphs in 43 CFR 4.275 (a).

Appendix—Public Land Orders

[Public Land Order 495]

MINNESOTA

MODIFYING THE BELTRAMI WILDLIFE MANAGEMENT AREA

Correction

In Federal Register Document 48-6290, appearing on page 4015 of the issue for Thursday, July 15, 1948, the last line of the first land description should read: "Sec. 29, N½NE¼".

[Public Land Order 497]

OREGON

WITHDRAWING PUBLIC LANDS FOR THE USE OF DEPARTMENT OF ARMY FOR FLOOD CONTROL PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use in connection with the construction of the Fern Ridge Dam and Reservoir Project under the supervision of the Department of the Army as authorized by the act of June 28, 1938 (52 Stat. 1215-1222):

WILLAMETTE MERIDIAN

T. 17 S., R. 5 W.,
Sec. 27, lots 2 and 3 (Revested Oregon and California railroad grant lands);
Sec. 28, lot 5.

The area described aggregates 5.27 acres.

It is intended that the lands described herein shall be returned to the administration of the Department of the Interior when they are no longer needed by the Department of the Army for the purposes for which they are reserved.

MASTIN G. WHITE,
Acting Secretary of the Interior.

JULY 13, 1948.

[F. R. Doc. 48-6533; Filed, July 21, 1948; 8:49 a. m.]

[Public Land Order 498]

ALASKA

WITHDRAWING PUBLIC LAND FOR USE OF BUREAU OF LAND MANAGEMENT AS AN ADMINISTRATIVE SITE AND REDUCING AIR-NAVIGATION SITE WITHDRAWAL NO. 129

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, and section 4 of the act of May 24, 1928, c. 728, 45 Stat. 729 (49 U. S. C. 214), it is ordered as follows:

Subject to valid existing rights, the tract of public land near Ruby, Alaska, described below by metes and bounds, is hereby withdrawn from all forms of appropriation under the public-land laws, including the mining laws but not the mineral leasing laws, and reserved for the use of the Fire Control Service, Bureau of Land Management, Department of the Interior, as an administrative site:

Beginning at a point in approximate latitude 64°43'04" N., longitude 155°27'55" W., from which the stone marking the intersection of Hill Street and Fourth Avenue in Ruby, Alaska, bears S. 68°24' W., 6.741 chs. distant.

From the initial point,
N. 65°20' E., 6 chs.,
S. 24°40' E., 4 chs.,
S. 65°20' W., 6 chs.,
N. 24°40' W., 4 chs. to the place of beginning.

The tract as described contains 2.4 acres.

The order of the Assistant Secretary of the Interior dated September 22, 1939, establishing Air-Navigation Site Withdrawal No. 129, is hereby revoked as to Tract No. 2, containing approximately 0.52 acre, which is included in the above-described area reserved by this order.

MASTIN G. WHITE,
Acting Secretary of the Interior.

JULY 13, 1948.

[F. R. Doc. 48-6535; Filed, July 21, 1948; 8:49 a. m.]

[Public Land Order 499]

CALIFORNIA

MODIFICATION OF EXECUTIVE ORDER NO. 6206 OF JULY 16, 1933

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910, c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, Executive Order No. 6206 of July 16, 1933, withdrawing certain lands in California in aid of proposed legislation withdrawing the lands for the protection of the water supply of the City of Los Angeles, is hereby modified to the extent necessary to permit locations and entries under the mining laws for nonmetalliferous mineral deposits on the following-described public lands:

MOUNT DIABLO MERIDIAN

T. 21 S., R. 38 E.,
Secs. 18 and 19.
T. 22 S., R. 38 E.,
Sec. 30, S½;
Sec. 31, N½.

The areas described aggregate 1,894.20 acres.

Portions of the sections described in T. 22 S., R. 38 E., are included in power transmission withdrawals. Any location or entry of these lands for nonmetalliferous minerals will be subject to the provisions of section 24 of the Federal Power Act of June 10, 1920, as amended, 41 Stat. 1075; 49 Stat. 846 (46 U. S. C. 818), as provided in 43 CFR 103.8.

This order shall become effective at 10:00 a. m. on September 15, 1948.

MASTIN G. WHITE,
Acting Secretary of the Interior.

JULY 14, 1948.

[F. R. Doc. 48-6537; Filed, July 21, 1948; 8:50 a. m.]